

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, April 8, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28962 against Lieutenant Jose Deschamps Tax Registry No. 931631. The case was conferenced on March 28, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charges in return for the recommended penalty of a Command Discipline Schedule (B) and the forfeiture of eight (8) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2023-28962

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, DESCHAMPS	FIRST JOSE	M.I. M	COMMAND 114 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 931631	SOCIAL SECURITY NO.	DATE APPOINTED 07/22/2002	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant Jose DESCHAMPS, on or about June 4, 2022, at approximately 0315, while assigned to 114 PCT and on duty, in the vicinity of 28th Street and Astoria Boulevard, Queens County, abused their authority as a member of the New York City Police Department, in that Lt. DESCHAMPS arrested § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant Jose DESCHAMPS, on or about June 4, 2022, at approximately 0315, while assigned to 114 PCT and on duty, in the vicinity of 28th Street and Astoria Boulevard, Queens County, abused their authority as a member of the New York City Police Department, in that LT DESCHAMPS arrested § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Lieutenant Jose DESCHAMPS, on or about June 4, 2022, at approximately 0315, while assigned to 114 PCT and on duty, in the vicinity of 28th Street and Astoria Boulevard and 34-16 Astoria Boulevard (114 Precinct), Queens County, abused their authority as a member of the New York City Police Department,	DISMISSED	

DC Bravio
FIRST DEPUTY COMMISSIONER

6/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

7/15/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
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Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, DESCHAMPS	FIRST JOSE	M.I. M	COMMAND 114 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 931631	SOCIAL SECURITY NO.	DATE APPOINTED 07/22/2002	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
in that Lt. DESCHAMPS detained § 87(2)(b) in excess of three hours, without sufficient legal authority.				

DC Press
FIRST DEPUTY COMMISSIONER

6/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

7/15/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner June 5, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28962 against Lieutenant Jose Deschamps, Tax No. 931631, with the recommendation that Lieutenant Deschamps receive a Schedule "B" Command Discipline, with the forfeiture of eight (8) vacation days. Assistant Deputy Commissioner, Trials Jeff Adler, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

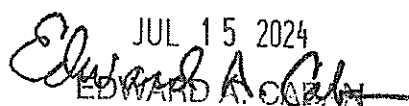
TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

JUL 15 2024



EDWARD A. MORAN
POLICE COMMISSIONER